Ownership, Licensing and Source Code

D & S Electric Works. Position on section 5 of your enquiry.

> **Status: NEGOTIATION DRAFT. Not approved.** Only the principle below is agreed internally. Source-access rights, escrow, and intellectual-property clauses are **unresolved** and listed in section 4 for the company's decision. Nothing here is a contractual commitment until approved by the company, agreed with DSEW and signed.

1. The agreed principle

- **The Verity platform remains the property of [Company legal name].** This includes its pre-existing core and reusable capabilities (tenant isolation, permissions, audit, stock, approvals, manufacturing, project and quality foundations).
- **DSEW owns its business data**, including everything it enters or uploads. Phase 1 includes one documented export (records as CSV, files in original form with an index) at handover and once more on request during warranty.
- **DSEW owns its DSEW-specific configuration**: numbering rules, templates, workflows, forms, roles, test and traveller formats, report layouts.
- We do not use DSEW's confidential data, drawings, specifications, prices or quality formats for anyone else.

2. Who owns what

Component	Owner	DSEW's position
DSEW business data and uploaded documents	DSEW	Full ownership; the Phase 1 export (CSV and original files)
DSEW-specific configuration (see section 1)	DSEW	Full ownership, documented at handover
Verity platform core and reusable capabilities	[Company legal name]	Right to use for DSEW's own business, terms to be defined (section 4)
Code written only for DSEW under this contract	**Unresolved** (section 4)	To be decided
Third-party open-source components	Their authors	Used under their own licences; a licence inventory is delivered at handover

3. Your nine questions: current position

#	Your question	Current position
1	Will the complete source code be delivered?	**Unresolved.** DSEW's configuration and deployment scripts are delivered. Platform source access is not yet decided

#	Your question	Current position
2	Will DSEW own the custom-developed code and IP?	DSEW owns its data and configuration. Ownership of DSEW-only code is **unresolved**
3	Can DSEW or another developer modify the code?	**Unresolved** for platform and DSEW-only code; configuration is DSEW's to change
4	Can it run and be maintained without dependence on you?	Intended: runbooks, scripts and documentation are delivered so another competent provider can operate it. Rights needed for deeper maintenance depend on question 1
5	Any proprietary frameworks, paid components or recurring licences?	None required: the stack is open source. A licence inventory is delivered. Optional external services would have their own charges
6	Schema, API docs, deployment scripts, config, technical documentation?	Yes, delivered at handover for what Phase 1 implements
7	Repository access from the beginning?	Intended for DSEW-specific work and configuration; scope for platform code is **unresolved**
8	Administrator credentials, deployment instructions, backup procedures?	Yes, through a signed handover checklist, with credentials rotated at handover
9	Restriction to DSEW's use; no resale of DSEW-specific implementation or confidential information?	Yes for confidential information and DSEW-specific implementation. Terms on the platform itself are **unresolved**

4. Unresolved decisions for the company

None of these is approved, priced or promised. **No escrow fee and no source-access fee is included in any price.**

#	Decision	Options to consider
1	Whether DSEW receives platform source, and on what terms	None; read/maintain-only access for DSEW's deployment; or other
2	Whether any independent escrow arrangement is offered	None; or an escrow arrangement priced separately if separately authorised
3	Ownership of code written only for DSEW	Company-owned and licensed; or DSEW-owned
4	Whether DSEW's funded features become reusable by the company, and under what confidentiality limits. DSEW's confidential drawings, prices, specifications and formats are not reused in any case	Reusable general code with DSEW data and formats excluded; or exclusive to DSEW
5	Rights to maintain, modify, deploy and keep operating the solution if the company stops supporting it	To be decided with the source-access choice in row 1
6	Licence scope, term and termination	To be drafted by counsel
7	Liability, warranty and indemnity clauses	To be drafted by counsel

This document is a negotiation draft. It does not answer DSEW's source-code questions finally, and it is not ready for signature. Rows 1 to 7 must be decided by the company, and the clauses reviewed by counsel, before the package is presented as a response ready for acceptance.

5. Confidentiality

- A mutual NDA will be signed before any sensitive document is shared.
- DSEW data is processed on DSEW's own server. Support access, if any, is by an audited, time-limited session with a stated reason that DSEW can see.
- At the end of an engagement we delete or return DSEW material we hold.